

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
May 8, 2026, 8:30 AM, Department 40**

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These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **May 8, 2026, 8:30 AM, in Department 40**, Commissioner Michael A. Jacques, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0004910 Roberson Revocable Trust - In Re the

Appearance is required for continued hearing on motion to set aside judgment approving settlement agreement or, in the alternative, to enforce settlement agreement.

2. S-PR-0011342 In Re the Estate of Steves, Fred Lemonte

Petition for final distribution is recommended for approval as prayed.

3. S-PR-0011426 In Re the Mayme A Wiese Rev Trust

Appearance is required for continued hearing on 2d / final trustee account of former trustee.

4. S-PR-0012117 In Re the Estate of Lewis, Edward

Appearance is required for hearing on petition for final distribution.

Clarification is needed: the petition repeatedly refers to heirs and heirs-at-law. This is a testate proceeding where all assets devolve under the will; accordingly, no assets will pass to any heir.

Missing corrected I&A referred to in ¶ 8 of the petition.

Clarification is needed: this is a non-cash estate. The court will not ordinarily approve payment of attorney fees in a non-cash estate where petitioners fail to show how fees are to be paid.

The request to approve distribution of the estate must be denied. Petitioners admit distributing the entirety of the estate without any court authorization to do so, citing no authority for such distribution. Such distribution was not only legally improper and unsupportable, it was directly contrary to decedent's will (which limits distribution to decedent's trust) and to the underlying trust (under which Steven Lewis's trust share is preserved for his children (see Art. 12 §§ 1–2). See also Declaration of Harake, filed June 20, 2023, at 1:26–28. The court should not authorize testate distribution contrary to the controlling testamentary instruments.

5. S-PR-0012196 In Re the Estate of Lumbrazo, Vincent Nicolo

Appearance is required for order to show cause hearing re appointment of Public Administrator as personal representative of the estate of Vincent Lumbrazo.

6. S-PR-0012833 In Re the Estate of Decocq, Bennie Lee

Petition for final distribution is recommended for approval as prayed.

7. S-PR-0012872 In Re the Steven Michael Kappler 2021 Rev Trust

Appearance is required for continued hearing on petition to remove trustee and for other relief.

Current status—including status mediation—is needed.

Note: although objections to trustee's account have been filed, no petition to approve the account has been filed or set for hearing.

8. S-PR-0012960 In Re the Estate of Petroni, Cristina Lynn

Petition for final distribution is recommended for approval as prayed.

9. S-PR-0013248 In Re the Estate of Pratt, Charles Frank

Court determination is needed: petitioner admits distributing significant portions of the estate without court authorization, characterizing the funds as estate income. Exchange of estate property for cash does comprise income of the estate. Note that bonds were appraised at an aggregate value of \$139,771.56. No receipts of any kind are included in the calculation of attorney fees; estate income would be includable as receipts. The petition does not allege any basis to characterize redemption of bonds as income to the estate. Petitioner's response has been received. Court determination is needed as to whether the petition may be adjudicated without additional or remedial action by personal representative.

10. S-PR-0013256 In Re the Estate of Schottky, Dean Warren

Petitioner's response is needed: petitioner admits distributing significant portions of the estate without any court authorization to do so, citing no authority for such distribution; account administrator's "insisten[ce]" does not permit executor to make unauthorized preliminary distributions.

11. S-PR-0013326 In Re the Estate of Riolo, Timothy G.

Petition for final distribution is recommended for approval as prayed.

12. S-PR-0013381 In Re the Marie Mickle Rev Trust

Petition to compel trustee account and for other relief

Appearance is required for continued hearing on petition to compel trustee account and for other relief.

Request / petition re disclosure of information by former trustee and for temporary restraining order

Appearance is required for hearing on request / petition re disclosure of information by former trustee and for other relief.

Missing notice of hearing. Missing proof of service of notice of hearing.

13. S-PR-0013383 In Re the Estate of Proctor, Marlene Zieman

Clarification is needed: this is a non-cash estate. The court will not ordinarily approve payment of attorney fees in a non-cash estate where petitioners fail to show how fees are to be paid.

14. S-PR-0013505 In Re the Estate of Reisinger, Kurt Patrick

Petition for final distribution is recommended for approval as prayed.

15. S-PR-0013946 In Re the Estate of Cattern, Anne Elizabeth

Petition to administer estate is recommended for approval as prayed.

16. S-PR-0013950 In Re the Estate of Kirvan, Richard W.

Petition to administer estate is recommended for approval as prayed.

17. S-PR-0013951 In Re the Estate of Watterson, Janelle Elaine

Missing declaration re terms of beneficiary trust. Local Rule 80.2.1.

18. S-PR-0013952 In Re the Estate of Nakashoji, Tara Mariko

Clarification is needed: petitioners incorrectly allege they jointly take 100% of the property. On the allegations of the petition, each parent succeeds individually to a 1/2 interest in decedent's estate. Prob.C. § 6402(b).

19. S-PR-0013953 In Re the Hollands Fam Trust

Petition determine trust property is recommended for approval as prayed.

20. S-PR-0013954 In Re the Estate of de Graaff, John Robinson

Notice of hearing as filed and serves omits ¶ 5 concerning IAEA powers.

21. S-PR-0013956 In Re the Estate of Brady, Michael Wallace

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing. Missing proof of publication of notice of hearing.

Clarification is needed: decedent's name is spelled *Micheal* throughout the petition and the will, but *Michael* on the attached death certificate, without explanation.

Missing required allegations at ¶ 5a(3)–(4) (RDP), (5)–(6) (child(ren)), (7)–(8) (issue of predeceased child(ren)).

Clarification is needed: ¶ 8 identifies two surviving children of decedent; however, ¶¶ 6f & 7b(2)(d) both allege decedent was not survived by issue.

Missing personal representative address (¶ 3h(2)).

Will is not self-proving; proof of will is needed. Witness statements are not a declaration (insufficient under C.C.P. § 2015.5) or affidavit (no jurat).

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

22. S-PR-0013958 In Re the Estate of Bain, Gregory David

Clarification is needed: petitioner prays for appointment as executor (¶ 1f), but alleges decedent died intestate (¶ 2b(1)). If petitioner seeks to proceed by admission of a will to probate, missing original will (Prob.C. § 8200(a)) and copy of will attached to petition.

Notice of hearing as published states that petitioner seeks admission of a will to probate.

Missing required allegations at ¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), and (b) (step- or foster child(ren)).

Missing request for bond or to waive bond (¶ 1d). If bond waiver is requested, missing waivers of bond by Matthew Bain, Michael Bain, Sarah Bain, David Bain.

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

23. S-PR-0013960 In Re the Joseph & Doris B Moreno Fam Trust

Appearance is required for hearing on petition to compel trustee account. It is recommended the court order trustee to account from May 2, 2022, through a date no earlier than April 1, 2026.